



THE SUPREME COURT — FULL MIND MAP

Topic-wise · Fully Explained · Hinglish · SSC / BPSC / BSSC / Railway



Topics in this chapter:

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1. Foundation, Article 124 & Judge Strength

- Supreme Court ka inauguration 28 January 1950 ko hua; source ise Indian Constitution se established institution batata hai aur kehta hai ki isne Government of India Act, 1935 ke Federal Court ko succeed kiya. [Q1, Q2]
- 1945 Sapru Committee (Sir Tej Bahadur Sapru) ne higher-judiciary appointments par recommendations di; source saath hi Constituent Assembly ke 1947 Ad hoc Supreme Court Committee ka bhi zikr karta hai. [Q3]
- Article 124 Supreme Court ki establishment/constitution se linked hai. Judges ki sanctioned strength badhane ki power Parliament ke paas hai. [Q4]
- Source timeline: original Court = CJI + 7 puisne judges; later strength 11 (1956), 14 (1960), 18 (1978), 26 (1986), 31 (2009), aur 2019 amendment ke baad total 34 (CJI + 33). [Q5, Q6, Q7]

2. Judges — Qualification, Appointment, Removal & Independence

- Article 124(3): candidate Indian citizen ho; 5 saal High Court judge, ya 10 saal High Court advocate, ya President ki opinion mein distinguished jurist ho sakta hai. [Q8]
- Supreme Court judges President appoint karta hai warrant under hand and seal se; source Article 124(2) consultation framework aur judge other than CJI ke case mein CJI consultation ko highlight karta hai. [Q9, Q23]
- Judge resignation President ko addressed writing se hota hai. [Q10, Q11]
- Removal Article 124(4): President ka order, lekin dono Houses ka address required — total membership ka majority + present-and-voting ka at least 2/3; grounds = proved misbehaviour or incapacity. Judges (Inquiry) Act, 1968 process detail karta hai; Speaker motion reject kar sakta hai, aur Constitution grounds ko define nahi karta. [Q12, Q13, Q14]
- Supreme Court judge retirement age 65 years hai; salary Parliament law se determine karta hai, aur interim specification Second Schedule se linked hai. [Q15, Q16, Q17]
- Autonomy safeguards: appointment consultation, salaries Consolidated Fund of India par charged/non-votable, aur Court staff appointments mein CJI ka role. Source Q19 yaad dilata hai ki Parliament Article 138 se jurisdiction enlarge kar sakta hai aur High Court administrative expenses State Consolidated Fund se linked hote hain. [Q18, Q19]
- Retired Supreme Court judge India ke kisi Court/authority ke saamne plead/act nahi kar sakta (Article 124(7)). Acting CJI ko President Article 126 ke under appoint karta hai. [Q20, Q21, Q22]

3. Collegium, NJAC, Ad hoc Judges & Constitution Bench

- Collegium system source ke mutabik 1993 Second Judges Case se evolve hua; Supreme Court collegium = CJI + 4 senior-most judges. Ye Parliament-made system nahi hai. [Q24, Q25, Q26]
- NJAC (99th Constitutional Amendment, 2014) mein CJI chairperson, next two senior SC judges, Union Law Minister aur two eminent persons ka framework tha; source notes Supreme Court ne 2015 mein ise unconstitutional strike down kiya aur collegium continue hua. [Q27]
- Second Administrative Reforms Commission ne higher-court appointments mein Executive, Legislature aur CJI ki participation recommend ki — source framing. [Q28]
- Supreme Court mein ad hoc judges Article 127 ke under ho sakte hain; Additional Judges ka provision SC mein nahi. Quorum unavailable ho to CJI, President ki previous consent ke saath qualified High Court judge ko ad hoc judge ke roop mein request kar sakta hai. [Q29, Q30, Q31]
- Article 128 ke under CJI, President ki previous consent se retired SC/qualified HC judge ko sit-and-act ke liye request kar sakta hai; source High Courts ke review power ko bhi Court-of-record status se jodta hai. [Q32]
- Constitution interpretation/substantial constitutional question ke liye minimum 5 judges ki bench — Constitutional Bench. [Q33, Q34]

4. Original Jurisdiction, Court of Record & Contempt

- Article 131 original jurisdiction: Union vs State(s), ya State vs State disputes. Source explicitly election disputes aur Union Territory disputes ko is Article 131 original jurisdiction se bahar rakhta hai. [Q35, Q36, Q37, Q38]
- Fundamental-right writ power Supreme Court ka exclusive nahi — Article 32 SC ke saath High Courts Article 226 se writs issue kar sakte hain. [Q39]
- Source Q40 Armed Forces Tribunal Act, 2007 ke context mein Court Martial appeals Supreme Court tak ja sakne ko note karta hai. [Q40]
- Article 129: Supreme Court Court of Record hai — judgments/proceedings permanent evidentiary record aur contempt punish karne ki power. Article 215 High Courts ko bhi Court of Record banata hai. [Q41, Q42, Q43]
- H.N. Sanyal Committee recommendations se Contempt of Courts Act, 1971 linked hai; Constitution contempt define nahi karta, Act karta hai; Parliament contempt law bana sakta hai. [Q44]
- Article 130: Supreme Court Delhi mein sit karta hai; CJI President ki approval se other place(s) appoint kar sakta hai. [Q45]

5. Basic Structure & Landmark Constitutional Cases

- Kesavananda Bharati v. State of Kerala (1973) mein Basic Structure doctrine enunciate/propound hua; Parliament amendment se Constitution ka basic structure damage/destroy nahi kar sakta — source summary. [Q46, Q47]
- Source Articles 32, 226 aur 227 ke judicial-review powers ko Constitution ka inviolable basic structure batata hai. [Q48]
- Basic Structure Theory ka source = Judicial Interpretation; source Minerva Mills (1980) ko later approval ke roop mein cite karta hai. [Q49]
- Largest bench source ke mutabik Kesavananda Bharati = 13 judges; second-largest Golaknath v. State of Punjab (1967) = 11 judges. Golaknath se source Fundamental Rights wali quoted proposition jodta hai. [Q50, Q51]
- Case-match trap: Bella Banerjee = West Bengal Land Development and Planning Act/property context; Maneka Gandhi (1978) = right to travel abroad/personal liberty. Source Q52 mein option (d) pair incorrect tha. [Q52]
- Quick jurisdiction map: Article 131 original; Articles 132–136 appellate; Article 143 advisory. Collegium, appellate aur original jurisdiction — tino Supreme Court se concerned hain. [Q53, Q54]

6. Appellate, Curative, Review & Article 142 Powers

- Constitutional-case appeals ke liye Article 132; Article 134A certificate for appeal se linked. Constitution interpretation cases Supreme Court tak appellate jurisdiction se aa sakte hain. [Q55, Q56]
- Curative Petition concept Rupa Ashok Hurra v. Ashok Hurra (2002) se evolved; source ise Article 142 ke under Supreme Court curative remedy se link karta hai. [Q57]
- Article 137 Supreme Court ko apne judgment/order review karne ki power deta hai, subject to Parliament law aur Article 145 rules. [Q58, Q59, Q60]
- Article 142: Supreme Court pending cause/matter mein complete justice ke liye decree/order pass kar sakta hai; source ordinary-law limitations ko is constitutional power par prohibition na maanne wala point test karta hai. [Q61]

7. Judicial Review, Due Process & Guardian of Constitution

- Judicial Review = Judiciary ka power to interpret Constitution aur unconstitutional legislative/executive law/order ko invalid declare karna. [Q62, Q63, Q64]
- Basic Structure ki textual definition Constitution mein nahi; source Article 13 ko judicial review se jodta hai. Judicial Review power Supreme Court aur High Courts dono enjoy karte hain. [Q65, Q66]
- High Courts central law ko unconstitutional declare kar sakte hain; Supreme Court constitutional amendment ko basic structure violate karne par question kar sakta hai — isliye source ke dono contrary statements false hain. [Q67]
- Judicial Review ka origin source USA batata hai; UK mein parliamentary supremacy ke contrast ka use karta hai. India mein source assertion ke mutabik scope limited hai, lekin “bag of borrowing” us limitation ka explanation nahi. [Q68, Q69]
- Due Process of Law source ke mutabik arbitrariness/irrationality-free procedure aur fairness/reasonableness se linked hai; Judicial Review ko “procedure established by law” base se joda gaya. Q72 source judicial process ko procedure, Constitution, conventions aur routine-law due process sabse link karta hai. [Q70, Q71, Q72]
- Source Q73 ke framing mein constitutional amendment unconstitutional ho sakta hai jab equality right ko Part III se remove karke elsewhere shift kare; is item ko source-specific proposition ke roop mein yaad rakho. [Q73]
- Supreme Court ko highest judicial court, federal court, Fundamental Rights protector, Constitution ka final interpreter/guardian/custodian bataya gaya hai. [Q74, Q75, Q76, Q77, Q78, Q79]
- Central laws ki constitutional validity par SC exclusive nahi — High Courts bhi review kar sakte hain. Fundamental Rights enforcement SC Article 32 aur HC Article 226 dono ke jurisdiction mein; Article 32 SC ka direct safeguard hai. [Q80, Q81, Q82]

8. Enlarged / Advisory Jurisdiction, Oath & Case Transfer

- Article 138: Parliament law se Union List matters mein Supreme Court ki additional jurisdiction/powers enlarge kar sakta hai. [Q83, Q84]
- Article 143 President ko Supreme Court se law/fact of public importance par advisory opinion seek karne ka right deta hai; source appointment/transfer of judges reference ko bhi Article 143(1) context mein rakhta hai. [Q85, Q86]
- Advisory-jurisdiction source points: President reference karta hai; full bench hears; Article 143(1) mein Court opinion dene ko always bound nahi, aur opinion Government par binding nahi. Court suo motu advice nahi deta. [Q87, Q88, Q89, Q90]
- 2002 Gujarat Assembly election deferral controversy par President Dr. A.P.J. Abdul Kalam ka Supreme Court reference source Article 143 se link karta hai. [Q91]
- Third Schedule mein Supreme Court/High Court judges ke oath forms hain; given oath form CJI/SC judges se linked hai. [Q92]

- Article 139A: Supreme Court specified circumstances mein cases transfer kar sakta hai — SC/HCs mein same substantial questions of law pending ho to. [Q93]

9. Important Supreme Court Cases — Quick Match

- Case match: A.K. Gopalan = preventive detention procedure; Romesh Thapar = free-speech restrictions; Shankari Prasad = Parliament amendment power; Champakam Dorairajan = educational-admission equality. [Q94]
- Source Q95 Kameshwar Singh, Ramesh Thaper, Motilal aur State of West Bengal v. Subodh Gopal — sabko zamindari/property-rights disputes se related batata hai. [Q95]
- Indra Sawhney v. Union of India (1992): source 27% OBC reservation uphold aur reservation 50% se exceed na karne wala principle note karta hai. [Q96]
- Illegal Migrants (Determination by Tribunals) Act, 1983 ko source 13 July 2005 judgment mein Article 355 context ke under unconstitutional batata hai. [Q97]
- TDSAT orders telecom/broadcasting/airport-tariff matters mein substantial question of law par Supreme Court appeal se linked; source cyber matters ke liye High Court appeal mention karta hai. [Q98]

10. CJI & Judges — Important Personalities / Chronology

- Shortest-serving CJI: Kamal Narain Singh — source dates 25 Nov 1991 to 12 Dec 1991, 17 days. [Q99]
- Chronology among given names: H.L. Dattu (2014–15) → T.S. Thakur (2015–17) → Jagdish Singh Khehar (2017). [Q100]
- Y.V. Chandrachud: 16th CJI, 22 Feb 1978–11 Jul 1985; source calls him longest-serving CJI and notes appointment by President Neelam Sanjiva Reddy. [Q101]
- Justice M. Fathima Beevi: first woman SC judge (1989), first Muslim woman in higher judiciary; source corrects Governor as Tamil Nadu (1997–2001), not Kerala. Q104 also identifies her as India's first woman SC judge. [Q102, Q104]
- A.S. Anand was 29th CJI (10 Oct 1998–31 Oct 2001). Gyan Sudha Mishra became fourth woman SC judge on 30 April 2010. [Q103, Q105]
- Justice L. Nageswara Rao source ke mutabik High Court judge bane bina directly Bar se SC elevated hue (7th such person). [Q106]
- Justice N. Kotiswar Singh SC appointment (July 2024) se pehle J&K and Ladakh High Court ke Chief Justice the; oath 18 July 2024 — source date. [Q107]
- Source personality traps: Justice S.K. Jha listed MP High Court CJs mein SC judge nahi bane; Justice R.C. Lahoti Rajasthan High Court judge nahi rahe. [Q108, Q109]

11. PIL & Judicial Activism

- PIL India mein Supreme Court judicial initiative se develop hua, mainly Justice P.N. Bhagwati aur Justice V.R. Krishna Iyer se associated. V.R. Krishna Iyer CJI nahi rahe — source explicitly corrects this. [Q111, Q112]
- PIL = Public Interest Litigation; High Court Article 226 aur Supreme Court Article 32 dono mein file ho sakta hai. [Q113, Q114]
- Public-minded citizen person/group/society ke behalf mein justice seek kar sakta hai jab affected person Court reach na kar paaye — source Assertion–Reason dono correct aur R explains A batata hai. [Q115]
- PIL concept/term ka origin source United States mein batata hai. [Q116, Q117]
- Judicial Activism India mein PIL se closely linked; source mid-1970s SC initiative mention karta hai. Justice A.S. Anand ka caution: judicial activism “judicial adventurism” na bane. [Q118, Q119]

12. Important Judgments, Social Issues & Court Language

- 23 September 2003 source judgment: Supreme Court ne women ko girls' government college principal appointment mein preference ko Articles 14, 15, 16 violation nahi maana. [Q120]

- Vishakha v. State of Rajasthan: workplace sexual-harassment guidelines (1997); source notes 2013 workplace sexual-harassment Act ne guidelines supersede ki. *[Q121]*
- Shayara Bano case (2017): source Triple Talaq/Talaq-e-Biddat ko unconstitutional aur Article 14 equality context se link karta hai. *[Q122]*
- “Caged Parrot” remark source Coal Gate allocation scam ke CBI context se jodta hai. *[Q123]*
- Homosexuality judgment source Section 377 IPC se related batata hai. *[Q124]*
- Article 348(1)(a): Supreme Court aur High Courts ki proceedings English language mein — source framing. *[Q125]*

13. Exam Traps — Disputed / Source-Specific Questions

⚠ **EXAM TRAP — Judge Strength — Old Options vs Source's 2019 Strength**

Q5–Q7 ke options/time-frame purane hain. Source current/recent reference mein Supreme Court (Number of Judges) Amendment Act, 2019 ke baad total 34 (CJI + 33) batata hai; Q7 ke 2008 Cabinet context mein historical answer 30 other judges (total 31) tha. In questions ko date-sensitive/disputed maana gaya hai. [Q5, Q6, Q7]

⚠ **EXAM TRAP — PIL Introduction — CJI Name**

Q110 mein source ke mutabik Hussainara Khatoon PIL development 1979 se linked hai; us waqt CJI Y.V. Chandrachud the, jabki P.N. Bhagwati 1985 mein CJI bane. Isliye given options mein appropriate answer nahi tha. [Q110]

⚠ **EXAM TRAP — Court of Record — Primary Option Nuance**

Q41 source kehta hai Court of Record ke do implications hain: permanent evidentiary record aur contempt punish power. UPPSC key ne “record” aspect ko primary option maana. Exam mein wording/options dekhkar choose karo. [Q41]